

Amendment No. 1 to HB1770

Terry
Signature of Sponsor

AMEND Senate Bill No. 1753*

House Bill No. 1770

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 63-6-204(m)(1), is amended by adding the following as new subdivisions:

(SS) "Clinical informatics";

(TT) "Lifestyle medicine"; or

(UU) "Medical virtualist";

SECTION 2. Tennessee Code Annotated, Section 63-6-204(a)(1), is amended by deleting the period at the end of the subdivision and substituting:

, or who, using clinical judgment, determines whether a treatment or procedure is clinically appropriate for the symptoms and diagnosis of such condition. This subdivision (a)(1) does not create a private right of action. This subdivision (a)(1) does not apply to a nonclinical ministerial or administrative task related to a determination of clinical appropriateness or to a decision made by a state employee acting in an official capacity during a contested case procedure conducted pursuant to title 4, chapter 5, part 3.

SECTION 3. Tennessee Code Annotated, Section 63-6-204, is amended by adding the following language as a new subsection (n):

(n) This chapter does not prohibit a person from practicing dentistry, nursing, optometry, podiatry, psychology, or any other of the healing arts under this title in accordance with the laws of this state.

SECTION 4. Tennessee Code Annotated, Section 63-9-106(a), is amended by adding the following immediately after the period at the end of the subsection:

The practice of osteopathic medicine also includes determining, using clinical judgment, whether a treatment or procedure is clinically appropriate for the symptoms and diagnosis of another person's medical condition. This subsection (a) does not create a private right of action. This subsection (a) does not apply to a nonclinical ministerial or administrative task related to a determination of clinical appropriateness or to a decision made by a state employee acting in an official capacity during a contested case procedure conducted pursuant to title 4, chapter 5, part 3.

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it, and applies to actions occurring on or after the effective date of this act.